

25CHCV00039 25CHCV00039

County: los-angeles

Division: Civil Law and Motion

Department: F43

Hearing date: 2026-07-21

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF43%2C07%2F21%2F2026

Source SHA-256: 61b854034a62c8ef1b9d35e9c092bc59b3ba59e5a0176498a3881fb8ec5138c5

Case Number: 25CHCV00039 Hearing Date: July 21, 2026 Dept: F43

Dept. F43

Hearing Date: 07-21-26

Case # 25CHCV00039, Fabian, et
al. v. Joers, et al.

Trial Date: 08-07-28

MOTION TO COMPEL

RESPONSES TO FORM INTERROGATORIES

MOVING PARTY: Plaintiff Omar Morales

RESPONDING PARTY: Attorney Shelby L. Clark

RELIEF REQUESTED

Order compelling defendant John Carl Joers to
serve verified responses to plaintiff Morales's first set of form
interrogatories and to impose monetary sanctions of \$1,197.50 against defendant
Joers and his counsel of record.

RULING: Motion is granted. The court awards plaintiff Morales \$935 in
monetary sanctions.

SUMMARY OF ACTION

The personal injury arises from a motor vehicle collision in which defendant John Carl Joers rear-ended plaintiffs Estela Yadhira Fabian and Omar Morales. Plaintiffs allege defendant Joers was driving a vehicle owned by defendant McLogan Supply Co., Inc. and acting within the scope of his employment with McLogan Supply. On January 6, 2025, Plaintiffs filed a complaint against both defendants, asserting negligence, vicarious liability, and negligent entrustment. McLogan Supply Co. answered on March 24, 2025, and Joers answered on November 6, 2025.

On April 7, 2026, plaintiff Fabian electronically served defendant Joers with her first set of form interrogatories. (Declaration of Taylor Scott Kruse ¶ 1, Exh. 1.) Responses were due May 11, 2026. On May 12, 2026, plaintiff Fabian extended the deadline for defendant Joers to serve objection-free responses to May 15, 2026. (Id. ¶ 3, Exh. 2.) No responses were ever served.

On April 7, 2026, plaintiff Omar Morales electronically served his first set of form interrogatories on defendant Joers. (Declaration of Taylor Scott Kruse ¶ 1, Exh. 1.) Joers failed to serve responses by the May 11, 2026, deadline or the May 15, 2026, deadline extension. (Kruse Decl., Exh. 2 [emailing attorney Shelby L. Clark, Candice Cromer, and RLR Cases at Hinshaw & Culbertson].)

On June 10, 2026, plaintiff Morales filed a motion to compel defendant John Carl Joers's objection-free, verified responses to her first set of form interrogatories and to impose \$1,197.50 in monetary sanctions against defendant Joers and his counsel of record, Shelby Clark and Hinshaw & Culbertson, LLP.

On July 17, 2026, attorney Shelby Clark filed an opposing declaration. (Declaration of Shelby L. Clark.) Mr. Clark claims counsel was informed that a transfer of counsel would occur, but that due to inadvertence the transfer never went through, and he was unaware his firm was

responsible for the discovery requests until July 16, 2026.

MEET AND CONFER

No meet and confer communication is required before filing a motion to compel initial discovery responses when the opposing party has failed to serve any responses.

(Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 408-409.)

ANALYSIS

A. Compelling Responses to Form Interrogatories

A propounding party may move to compel responses to form interrogatories where the responding party fails to provide any responses. (Code Civ. Proc., § 2030.290, subd. (b).) The propounding party must show the interrogatories were properly served, that the time to respond expired, and no response has been served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906.) Unless excused by a protective order, the responding party must serve responses (an answer, objection, or election to allow inspecting or copy records) within 30 days after the interrogatories are served or according to an agreed upon deadline extension. (Code Civ. Proc., §§ 2030.210, subd. (a), 2030.270.) Failing to respond within these time limits waives objections. (Code Civ. Proc., § 2030.290, subd. (a).)

The court has reviewed the moving papers and finds that plaintiff Morales properly served his form interrogatories and granted defendant Joers a deadline extension. However, defendant Joers has failed to serve any responses.

Defense counsel's opposing declaration fails to provide a substantial justification for failing to provide responses or an update on the transferring on counsel.

Mr. Clark claims that on February 19, 2026, both he, and attorney Robert L. Reisinger, received an email from defendants' insurance carrier, transferring the case to new counsel. (Declaration of Shelby L. Clark ¶ 2, Exh.

A.) Mr. Clark's firm promptly initiated the transfer, a process with which Mr. Clark was engaged in at his firm. (Id.) According to Mr. Clark, plaintiffs' counsel knew of the transfers as of March 16, 2026. (Id. ¶ 3, Exh.

B.) Around that same time, plaintiffs' medical examinations were tentatively set for March 24, 2026. (Id. ¶ 4.)

When plaintiff Morales's discovery was served, Mr. Clark believed the transfer to new counsel had been completed, and the legal assistant who assigned to Mr. Clark returned to her prior assignment within the firm. (Clark Decl. ¶ 5.) Because of this, Mr. Clark did not realize the Substitution of Attorney form had not been completed or signed. (Id.) Mr. Clark first learned of the incomplete form on May 13, 2026, and followed up with staff to ensure its completion. (Id. ¶ 6.) The court notes that no such form has been filed.

An objection to a notice of deposition was served over Mr. Clark's signature on June 19, 2026, but the document had been reviewed by another attorney, not Mr. Clark, and thus, Mr. Clark did not realize the transfer was not complete. (Clark Decl. ¶ 7.) Mr. Clark then went on vacated from June 26, 2026 through July 6, 2026, and was unaware of any communications concerning the case transfer. (Id. ¶ 8.) It was only on July 16, 2026, that Mr. Clark realized the transfer had not been completed and discovery remained his firm's responsibility. (Id. ¶ 9.) Mr. Clark claims he believed his firm was only carbon copied on the discovery responses and he never received a phone call from plaintiffs' counsel concerning the lack of response and the instant motions.

Although the evidence demonstrates plaintiffs' counsel knew of the intent to transfer to different defense counsel, Mr. Clark does not dispute receiving the discovery requests and extension email from plaintiffs' counsel. Nor does the Clark Declaration indicate whether the name of the new case manager was provided to counsel. Both the motion and the extension email were sent before Mr. Clark went on vacation. Furthermore, a review of the May 12, 2026, "extension" email presented by plaintiff Morales clearly indicates

the email was sent to Mr. Clark, with plaintiffs' counsel carbon copying other from his firm. The court notes Mr. Clark first learned about the incomplete Substitution form on May 13, 2026. However, if Mr. Clark learned the form remained incomplete the day after plaintiffs' counsel sent the substitution email, it is unclear why Mr. Clark did not check to ensure whether other communications concerning this matter had slipped through the cracks. Finally, Mr. Clark fails to state how he learned about the outstanding discovery in this matter on July 16, 2026, or state when discovery responses will be sent to plaintiff Morales.

Because the court finds defense counsel fails to provide a substantial justification for failing to serve responses to discovery before plaintiff Morales filed his motion, the court grants plaintiff Omar Morales's motion to compel defendant John Carl Joers's responses to his first set of form interrogatories.

Defendant Coers is ordered to serve objection-free, verified responses within 30 days of the issuing of this order.

B. Sanctions

Plaintiff Omar Morales asks the court to impose monetary sanctions of \$1,197.50 against defendant Joers and his counsel of record, Shelby Clark with Hinshaw & Culbertson, LLP, jointly and severally. (Kruse Decl. ¶ 5.)

The court must impose sanctions against any party who “unsuccessfully makes or opposes a motion to compel responses to interrogatories unless, it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.290, subd. (c).)

Plaintiff Fabian is entitled to sanctions for the seasons stated above in Section A.

Plaintiff's counsel charges \$650 per hour. (Kruse Decl. ¶ 7(a).) The request includes: 0.75 hours preparing the motion and supporting papers—\$487.50; 0.50 hours reviewing and replying to an opposition—\$325; 0.50 hour preparing for and attending the motion hearing remotely—\$325; and a \$60 filing fee.

The court finds the requested hourly rate is excessive,

considering counsel provides no information concerning his experience in order to support the rate. The court lowers attorney Kruse's hourly rate to \$500 per hour. The court finds the time requested is reasonable.

Therefore, the court awards plaintiff Estela Yadhira Fabian monetary sanctions in the reduced amount of \$935.

CONCLUSION and ORDER

The court grants plaintiff Omar Morales's motion to compel defendant John Carl Joers's responses to his first set of form interrogatories.

The court orders defendant Joers to serve code-compliant, objection-free, and verified responses within thirty (30) days of the issuing of this order.

The court awards plaintiff Estela Yadhira Fabian \$935 in monetary sanctions. Defendant Joers and his attorney of record are ordered to pay plaintiff's counsel within thirty (30) days of the issuing of order.

Plaintiff Omar Morales to give notice.